

Amendment No. 1 to SB1728

Briggs
Signature of Sponsor

AMEND Senate Bill No. 1728

House Bill No. 1514*

by deleting all language after the enacting clause and substituting:

SECTION 1. Tennessee Code Annotated, Title 5, Chapter 1, Part 1, is amended by adding the following as a new section:

(a) The general assembly occupies the entire field of the regulation of shopping carts, including, but not limited to, their purchase, use, taxation, manufacture, ownership, sale, storage, and transportation, to the exclusion of all county or metropolitan government laws, ordinances, resolutions, enactments, or regulations. A county or metropolitan government, or any agency, department, or official of a county or metropolitan government, shall not adopt an ordinance, resolution, or other regulation requiring a business to adopt a shopping cart policy of any nature or imposing a fee or fine on a business related to shopping carts.

(b) As used in this section, "shopping cart" means a cart, trolley, basket, buggy, or other similar device supplied and owned by a retailer for use by customers and employees for the transport of merchandise.

SECTION 2. Tennessee Code Annotated, Title 6, Chapter 54, Part 1, is amended by adding the following as a new section:

(a) The general assembly occupies the entire field of the regulation of shopping carts, including, but not limited to, their purchase, use, taxation, manufacture, ownership, sale, storage, and transportation, to the exclusion of all municipal government laws, ordinances, resolutions, enactments, or regulations. A municipal government, or any agency, department, or official of a municipal government, shall not adopt an ordinance,

resolution, or other regulation requiring a business to adopt a shopping cart policy of any nature or imposing a fee or fine on a business related to shopping carts.

(b) As used in this section, "shopping cart" means a cart, trolley, basket, buggy, or other similar device supplied and owned by a retailer for use by customers and employees for the transport of merchandise.

SECTION 3. This act takes effect upon becoming a law, the public welfare requiring it.